



IDENTITY THEFT AFFIDAVIT

(CREDIT CARD OR DEBT BUYER COLLECTION ACTION)
IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: _____

County Where the Case Was Filed

Enter the case information as it appears on your other court documents.

PLAINTIFF: _____

Who started the case.

First, Middle, and Last Name, or Business Name

DEFENDANTS: _____

Who the case was filed against.

First, Middle, and Last Name

Case Number _____

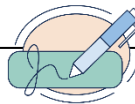


You must also complete the Illinois Attorney General Identity Theft Affidavit and send it to the other party.

Do **not** file the Illinois Attorney General Identity Theft Affidavit with the Circuit Clerk.

You can find it here: bit.ly/ID-Theft-AG

1. I am the defendant in this lawsuit.
2. This lawsuit is about a debt that I did not create. Someone stole my identity and used my identity to create the debt.
3. I have completed an Illinois Attorney General Identity Theft Affidavit. I am mailing the Illinois Attorney General Identity Theft Affidavit, along with all required documentation, to the plaintiff.



SIGN

Under [735 ILCS 5/1-109](#), your signature means that:

- 1) everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and
- 2) I understand that making a false statement on this form is perjury and has penalties provided by law.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/ _____ Print Name _____

☐ I am completing this form for myself

Phone Number _____ Email (if you have one) _____

Address _____

Street, Apt. #

City

State

Zip Code

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ I am a lawyer completing this form on behalf of a client (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____

Street, Apt. #

City

State

Zip Code

PROOF (EXPLANATION) OF DELIVERY

This tells the judge how and when you will send your documents **to the other people in the case** under Rule [11](#). If a person in the case has a lawyer, **you must send your documents to their lawyer**. File this form with the Circuit Clerk, but do not list the Clerk below as a person you are sending your documents to.

A. I am sending this *Proof of Delivery* and the following court documents:

Name of Documents

To:

Full Name or Law Firm Name

B. I am sending the documents:

☐ By **email** to this email address: _____

☐ Through an approved **e-filing website (EFSP)** to this email address: _____



You **must** send documents electronically (by email or through an EFSP) if you and the person you are sending documents to have an email address. If you or the person you are sending to do not have an email address, or if you have permission from the judge, you may send documents using the options below.

☐ I am sending the documents to this address:

Street, Apt. #

City

State

Zip Code

By (check all that apply):

☐ Personal hand delivery.

You can only deliver to the person, person's family member over 13 at person's residence, person's lawyer, or the lawyer's office.

☐ Mail or third-party carrier (FedEx, UPS, etc.) to the address listed above, with postage or delivery prepaid.

Location of mailbox or third-party carrier: _____

Address or Intersection

City

State

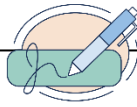
☐ Mail from a prison or jail: _____

Name and Address of Prison or Jail

C. The documents will be sent on: Date: _____
Month, Day, Year

Time: _____
Include AM or PM

☐ I am sending the document to more than 1 person and have completed an *Additional Proof of Delivery* form.



Case Number _____

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Under [735 ILCS 5/1-109](#), your signature means that:

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☐ I am completing this form for myself

Phone Number _____ Email (if you have one) _____

Address _____

Street, Apt. #

City

State

Zip Code

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ I am a lawyer completing this form on behalf of a client (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____

Street, Apt. #

City

State

Zip Code



WHAT'S NEXT

NEXT STEP FOR PERSON FILLING OUT THIS FORM:

After you fill out your form, file it with the Circuit Clerk's office in the county where your case is taking place.

Then, send your forms to the other people in the case. Find your Circuit Clerk: ilcourts.info/clerks.

You must also complete the Illinois Attorney General Identity Theft Affidavit and send it to the other party.

Do **not** file the Illinois Attorney General Identity Theft Affidavit with the Circuit Clerk.

You can find it here: bit.ly/ID-Theft-AG.



Learn more about each step in the process and how to file in the instructions:

ilcourts.info/how-to-identity-theft